

MASTER SERVICES AGREEMENT

This Master Services Agreement ("Agreement") is made and entered into as of January 15, 2025 ("Effective Date"), by and between:
VERTEX CLOUD TECHNOLOGIES (PVT) LIMITED, a company incorporated under the laws of Pakistan, having its registered office at 42-B, Commercial Zone, Gulberg III, Lahore ("Service Provider"), and
MERIDIAN GLOBAL LOGISTICS INC., a corporation organized under applicable laws, having its principal office at Suite 800, Financial District, Karachi ("Client").

Service Provider and Client are collectively referred to as the "Parties" and individually as a "Party."

RECITALS

WHEREAS, Client desires to retain Service Provider to perform enterprise software development and cloud integration services; and
WHEREAS, Service Provider possesses the technical expertise, personnel, and resources required to perform such services;
NOW, THEREFORE, in consideration of the mutual covenants and promises herein contained, the Parties agree as follows:

1. SCOPE OF SERVICES AND DELIVERABLES

1.1 Statements of Work. Service Provider shall provide the professional cloud architecture, backend development, and cybersecurity integration services described in one or more Statements of Work ("SOW") executed by both Parties.

1.2 Standard of Performance. Service Provider covenants that all deliverables and services shall be performed in a timely, professional, and workmanlike manner in conformity with industry standards.

1.3 Change Orders. Any material modification or expansion to the agreed scope of work must be documented in a written Change Order signed by authorized representatives of both Parties.

2. FEES, INVOICING, AND PAYMENT TERMS

2.1 Compensation. Client shall pay Service Provider the milestone fees and time-and-materials rates set forth in each applicable SOW.

2.2 Invoicing Schedule. Service Provider shall invoice Client on the first business day of each calendar month for services rendered during the preceding month.

2.3 Payment Terms. Client shall pay all undisputed invoice amounts within thirty (30) calendar days from receipt of invoice ("Net 30").

2.4 Late Payment Interest. Any undisputed amount not paid when due shall accrue late interest at the rate of 1.5% per month, or the maximum rate permitted by law, calculated daily from the due date until paid in full.

2.5 Disputed Invoices. Client shall notify Service Provider in writing within ten (10) business days of invoice receipt if Client disputes any charge in good faith. Undisputed portions must be paid on schedule.

3. TERM AND TERMINATION

3.1 Term. This Agreement shall commence on the Effective Date and remain in full force for an initial term of two (2) years, unless terminated earlier pursuant to this Section 3.

3.2 Termination for Convenience. Client or Service Provider may terminate this Agreement or any SOW for any reason or no reason upon providing sixty (60) days

advance written notice to the other Party.

3.3 Termination for Material Breach. Either Party may terminate this Agreement

immediately upon written notice if the other Party commits a material breach of any obligation and fails to cure such breach within thirty (30) calendar days of receiving written notice thereof.

3.4 Immediate Termination. Either Party may terminate this Agreement immediately

without cure period if the other Party: (a) breaches Section 5 (Confidentiality); (b) becomes insolvent or files for bankruptcy; or (c) engages in gross negligence or willful misconduct.

3.5 Effect of Termination. Upon termination, Client shall pay Service Provider for

all completed work and non-cancelable commitments incurred up to the effective termination date. All proprietary files and confidential records must be returned or destroyed within fourteen (14) days.

4. INTELLECTUAL PROPERTY RIGHTS

4.1 Client Ownership. All custom deliverables, source code, designs, and work

products developed specifically for Client under an SOW shall be the exclusive property of Client upon full payment of all applicable fees ("Work for Hire").

4.2 Pre-existing IP. Service Provider retains sole and exclusive ownership of all

pre-existing software, libraries, algorithms, and tools owned or licensed by Service Provider prior to the Effective Date ("Background IP").

4.3 License to Background IP. Service Provider grants Client a perpetual, worldwide,

non-exclusive, royalty-free license to use Background IP solely as incorporated into the Deliverables.

5. CONFIDENTIALITY AND NON-DISCLOSURE

5.1 Definition. "Confidential Information" means all non-public technical, business,

customer, or financial data disclosed by one Party to the other, marked as confidential or reasonably understood to be confidential.

5.2 Obligations. The receiving Party agrees: (a) to hold Confidential Information in

strict confidence; (b) not to disclose it to third parties without prior written consent; and (c) to use it solely for executing this Agreement.

5.3 Exclusions. Confidentiality obligations do not apply to information that: (a) is

or becomes public knowledge without breach; (b) was already known to the recipient prior to disclosure; or (c) is required to be disclosed by valid court subpoena.

5.4 Survival. Confidentiality obligations shall survive termination of this Agreement

for a period of five (5) years.

6. INDEMNIFICATION AND HOLD HARMLESS

6.1 Vendor Indemnity. Service Provider shall defend, indemnify, and hold harmless

Client, its directors, officers, and employees against any third-party claims, liabilities, losses, or legal costs arising out of any allegation that the Deliverables infringe any valid patent, copyright, or trade secret.

6.2 Client Indemnity. Client shall defend, indemnify, and hold harmless Service

Provider against third-party claims arising from: (a) Client's breach of applicable laws; or (b) data, content, or materials provided by Client to Service Provider.

6.3 Indemnification Procedure. The indemnified Party must give prompt written notice

of the claim, grant the indemnifying Party sole control of defense and settlement, and provide reasonable assistance at the indemnifying Party's expense.

7. LIMITATION OF LIABILITY

7.1 Consequential Damages Waiver. Under no circumstances shall either Party be liable

to the other for indirect, incidental, special, exemplary, or consequential damages, or loss of profits, data, or business opportunities.

7.2 Aggregate Liability Cap. The total aggregate liability of either Party arising out of or related to this Agreement, whether in contract, tort, or otherwise, shall be strictly capped at the total amount paid or payable by Client to Service Provider under this Agreement during the twelve (12) months preceding the event giving rise to liability.

7.3 Carveouts. The liability limitations in Sections 7.1 and 7.2 shall NOT apply to:

(a) breach of Section 5 (Confidentiality); (b) indemnification obligations under Section 6; or (c) damages caused by gross negligence or intentional fraud.

8. GOVERNING LAW AND DISPUTE RESOLUTION

8.1 Governing Law. This Agreement shall be construed and governed in accordance with the substantive laws of Pakistan, without regard to its conflict of laws principles.

8.2 Good Faith Negotiation. In the event of any controversy or claim arising out of this Agreement, the Parties shall first attempt in good faith to resolve the dispute through executive negotiations for at least twenty-one (21) days.

8.3 Arbitration. Any dispute not resolved through negotiation shall be submitted to final and binding arbitration under the Arbitration Act, 1940. The arbitration shall take place in Lahore, Pakistan, conducted in the English language before a sole arbitrator mutually agreed by the Parties.

9. GENERAL BOILERPLATE PROVISIONS

9.1 Force Majeure. Neither Party shall be liable for delays or non-performance resulting from acts of God, flood, war, pandemic, government restriction, or civil unrest beyond reasonable control.

9.2 Severability. If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall remain in full force and effect.

9.3 Entire Agreement. This Agreement constitutes the entire agreement between the Parties and supersedes all prior negotiations, representations, or oral agreements.

9.4 Counterparts. This Agreement may be executed in counterparts, each of which shall be deemed an original, and electronic signatures shall be legally binding.

IN WITNESS WHEREOF, the Parties have caused this Master Services Agreement to be executed by their duly authorized representatives.

VERTEX CLOUD TECHNOLOGIES (PVT) LTD

MERIDIAN GLOBAL LOGISTICS INC.

By: _____ By: _____

Name: Tariq Mansoor

Name: Sarah J. Jenkins

Title: Chief Executive Officer

Title: VP of Global Operations

Date: January 15, 2025

Date: January 15, 2025